



Banks and Gesso, LLC

720 Kipling St., Suite 117
Lakewood, Colorado 80215

(303) 274-4277
Fax (303) 274-8329
www.banksandgesso.com

TR-001

December 1, 1999

RECEIVED

DEC 01 1999

Ms. Christina L. Kamnikar
Division of Minerals and Geology
1313 Sherman St., Room 215
Denver, CO 80203

Division of Minerals & Geology

Re: Technical Revision for Southdown, Inc., Lyons Quarry, Permit No. M-77-208

Dear Ms. Kamnikar:

This letter is in response to your letter of October 18, 1999, which addresses the cement kiln dust technical issues for the Lyons Quarry, owned by Southdown, Inc., and to thank you for your letter of 11/29/99 extending our filing of the technical revision to 12/1/99.

Attached is the additional computer modeling that you requested (the HELP modeling was conducted by Richard Henry of Grant Environmental). This modeling shows that Southdown's proposed management practices protect ground water resources. All of the modeling and investigative work completed to date indicates that no threat to ground water exists in the present or future if Southdown continues their current management practice of limiting the mass of CKD exposed through the use of interim capping.

The Technical Revision to Permit No. M-77-208 shall contain the following provisions:

1. The CKD disposed in C-Pit shall be covered with an interim cap of 2 feet of compacted shale and clay. The working disposal area will be limited to 7 surface acres x 20 foot lift. At no time should the exposed CKD mass be larger than these dimensions. The quantity of CKD generated varies dramatically with the types of cement produced. It is expected that capping work would normally occur on a 2 to 5 year frequency.

2. Final closure of the disposed CKD in C-Pit shall include a 2 foot layer of compacted shale and clay covered with topsoil and planted as currently provided for in Permit No. M-77-208.
3. Any water accumulation in C-Pit shall be monitored twice a year for thallium and selenium. Since the A-Pit lake is currently the source for much of the water in C-Pit (sprinkler accumulation) A-Pit will be monitored twice a year for thallium and selenium to establish an "upgradient" water quality. Monitoring results shall be submitted to the Division with the Annual Report.

If you have any questions, please feel free to call me at 303-274-4277.

Sincerely,

Paul Banks /kj

Paul Banks

PB/kj

Enclosures

Cc: John Lohr
File